

EXHIBIT L

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 09-cv-00019-MSK-MEH

UNITED STATES OF AMERICA,

Plaintiff,

v.

CEMEX, INC.,

Defendant.

UNITED STATES' NOTICE OF F.R.C.P. R. 30(b)(6) DEPOSITION TO CEMEX, INC.

Please take notice that, pursuant to Rule 30(b)(6) of the Federal Rules of Civil Procedure, Plaintiff, the United States of America, will take the deposition(s) upon oral examination of a representative (or representatives) of CEMEX, Inc. ("CEMEX") upon such date(s), in such location(s), and for such length of time(s) as mutually agreed to by the Parties. Unless otherwise agreed by the Parties, the examination of each deponent designated by CEMEX shall continue for a period of time of not less than seven (7) hours (excluding breaks). The deposition(s) will be recorded by stenographic means and taken under oath before a person duly authorized to administer oaths.

As required by Rule 30(b)(6) of the Federal Rules of Civil Procedure, CEMEX shall prepare, designate, and produce one or more officials, employees, agents, or other persons who are competent to testify on CEMEX's behalf concerning those matters for examination known or reasonably available to CEMEX that are described in Schedule A (attached hereto).

Counsel for CEMEX in the above-captioned matter has agreed to except service of this Notice on behalf of CEMEX via electronic mail and has waived any requirement to serve the corporation.

Dated: August 31, 2010

Submitted by,

/s/ John N. Moscato

JOHN N. MOSCATO

Senior Counsel

Environmental Enforcement Section

Environment and Natural Resources Division

United States Department of Justice

1961 Stout Street, 8th Floor

Denver, CO 80294

Telephone: (303) 844-1380

Facsimile: (303) 844-1350

Email: John.Moscato@usdoj.gov

CERTIFICATE OF SERVICE

I hereby certify that on August 31, 2010, true and correct copies of the foregoing United States' Notice of F.R.C.P. 30(b)(6) Deposition to CEMEX, Inc. was served electronically to the following:

Attorneys for Defendant, CEMEX, Inc.

Chet Thompson
Derek A. Hahn
Richard E. Schwartz
Crowell & Moring, LLP
1001 Pennsylvania Ave., N.W.
Washington, D.C. 20004
Telephone: 202-624-2655
Email: cthompson@crowell.com
Email: rschwartz@crowell.com
Email: dhahn@crowell.com

Christina J. Valerio
Hugh Q. Gottschalk
Wheeler, Trigg, O'Donnell, LLP
1801 California Street #3600
Denver, CO 80202-2617
Email: gottschalk@wtotrial.com
Email: valerio@wtotrial.com

/s/ Stephanie Taylor
Stephanie Taylor

SCHEDULE A
(MATTERS FOR EXAMINATION)

1. The March 1997 oxygen enrichment test at CEMEX's Lyons Facility ("Facility") including: test design; test implementation (including locations where oxygen was injected); test results (including emissions data generated during the test); analysis of test results; conclusions based on the test regarding the effects of oxygen enrichment on clinker production and kiln emissions (particularly NOx emissions); permitting considerations; and/or post-test plans for further testing or use of oxygen enrichment.
 - a. Current location of documents in CEMEX's possession, custody, or control which refer or relate to the foregoing subjects and whether said documents have been produced to the United States.
2. The April 1998 oxygen enrichment test at CEMEX's Lyons Facility including: test design; test implementation (including locations where oxygen was injected); test results (including emissions data generated during the test); analysis of test results; conclusions based on the test regarding the effects of oxygen enrichment on clinker production and kiln emissions (particularly NOx emissions); permitting considerations; and/or post-test plans for further testing or use of oxygen enrichment.
 - a. Current location of documents in CEMEX's possession, custody, or control which refer or relate to the foregoing subjects and whether said documents have been produced to the United States.
3. Use of oxygen enrichment (both purchased liquid oxygen and oxygen generated on-site) at the Facility from March 1, 1997 through December 31, 2006 including:
 - a. On a yearly and monthly basis, the location(s) at which oxygen was injected and the volume (liquid/generated) injected at each location;
 - b. Locations where oxygen is measured at the Kiln and Calciner (e.g., KILN O2, COMB CHBR O2, and KILN OXYGEN)
 - c. On a yearly and monthly basis, the impact of oxygen enrichment on clinker production; and
 - d. On a yearly and monthly basis, the impact of oxygen enrichment on kiln emissions (particularly NOx emissions).
4. Actions at the Facility (identified, infra, in ¶ 4.a. and 4.b.) including: reason(s) for taking

the action; implementation of the action; impact of action on clinker production; impact of action on kiln emissions (particularly NOx emissions); notice of and/or representation(s) made by the Facility to the EPA, State of Colorado, and/or Boulder County Health Department ("BCHD") about the action, its impacts on clinker production, its impacts on kiln emissions (particularly NOx emissions); and CEMEX's determinations as to whether the action (individually or in the aggregate) required state construction permits and/or PSD/NNSR permits:

- a. Actions between 1997 - 2000 identified in Attachment 1 (Bates Number CMXLYO00045592); and
 - b. 1998 clinker-cooler upgrade and 1998 raw mill modifications.
5. Changes to the terms and conditions of the Facility's kiln permit (12BO444-2) made between December 31, 1993 and January 1, 2009 pertaining to:
- a. kiln annual mass emission rates for NOx;
 - b. annual new kiln feed throughput;
 - c. fuel composition; and
 - d. heat input.
6. Monthly and annual volume of clinker produced at the Facility from January 1, 1995 through and including January 1, 2009.
7. Monthly and annual NOx kiln emissions for the Facility for the period January 1, 1995 through January 1, 2009.
- a. before and after moisture correction; and
 - b. before and after any data substitution.
8. The estimation of monthly and annual NOx kiln emissions for the Facility for the period January 1, 1995 through January 1, 2009 which CEMEX will present at trial.
9. Continuous emissions monitoring systems ("CEMS")^{1/} at the Facility:
- a. Design of the Facility's CEMS including sample conditioning, sample analysis,

^{1/} For the purpose of this Schedule, unless otherwise expressly stated, CEMS includes sample extraction devices, sample conditioners, analyzers, data calculation, and data management components/devices.

data management, and calculation components as installed and operated between January 1, 1995 through January 1, 2009;

- b. Moisture corrections made by the Facility.
 - i. Identify for each year from January 1, 1995 through January 1, 2009:
 - (1) Moisture factor(s) used to determine mass emissions rate values; and
 - (2) Years in which data was corrected because of missing or erroneous moisture values.
 - ii. Whether and how corrections for moisture (e.g., from wet stack to dry analytical results) were made by the Facility in determining the mass emissions rate values (e.g., were the moisture data or other data needed for these calculations measured directly and continuously or based on assumed constant values embedded in the CEMS/DAS software, how were any assumed constant values determined and applied and how frequently were these values adjusted); and
 - iii. Work done in 2001 by McVehil-Monnett Associates comparing CEMS emissions to stack test emissions and follow up actions by the Facility.
- c. Modifications made to the CEMS at the CEMEX Facility between January 1, 1995 and January 1, 2009.
 - i. Impact of modifications on the calculations of mass emissions rate (e.g., change from cold/dry sample conditioning to hot/wet sample conditioning and analysis).
- d. Performance verification for each and all CEMS (e.g., 40 C.F.R. part 60, appendix B, Performance Specification 2 relative accuracy test audit).
 - i. Results of those verification tests relative to the calculation of NO_x mass emissions rate; specifically, how was moisture in the sample gas determined and used in the modified CEMS in the calculation of mass emissions rate. If there were errors in the CEMS calculation procedures, how and when were they detected and corrected.
 - ii. For relative accuracy test audits, discuss why results were expressed in

concentration (parts per million or ppm) rather than in pounds per hour.

10. Calculating cumulative kiln NO_x emissions monthly and yearly values for the period January 1, 1995 through January 1, 2009.
 - a. Calculation procedures used at the CEMEX Facility applicable for these determinations; and
 - b. Performance and reporting of mass accumulation calculations inherent to the CEMS DAS software and reporting.
11. For the period January 1, 1995 through January 1, 2009, Facility CEMS Data Quality.
 - a. CEMS data quality procedures and criteria applied to determining whether the CEMS data are suitable for mass accumulation or compliance calculations.
 - b. CEMS analyzer daily calibration error or instrument drift checks. (e.g. are these checks performed using certified calibration gases or with internal instrument signals).
 - c. Procedures and criteria applied by the Facility to determine when the CEMS data are out-of-control and to determine when the CEMS returned to acceptable performance.
 - d. Status of the CEMS data when the data are determined to be out-of-control.
 - e. Procedure used for determining mass emissions rates or compliance established to address CEMS data gaps for out-of-control periods; and
 - f. Criteria applied by the Facility to determine what values to substitute for missing or out-of-control data. Application of those criteria and procedures in Facility's calculation of NO_x emissions.
12. CEMEX's BART submittals to CDPHE, CEMEX's BART permit and 2009 BART determination for the CEMEX's Facility.
13. The September 2006 SNCR test at the Facility including test design, test implementation, locations where ammonia was injected, test results (including data), analysis of test results, conclusions based on the test regarding potential NO_x reduction at the Facility and current cost (capital cost and operation and maintenance costs) of SNCR technology.

14. CEMEX's view on what constitutes current Best Available Control Technology ("BACT") at the Facility for NOx and PM-10. CEMEX's estimate of costs associated with BACT for NOx and PM-10 for the Facility.

ATTACHMENT 1 TO DEPOSITION NOTICE EXHIBIT A

5-17-02

Lyons Clinker Production History							
	<u>Tons/Hour</u>	<u>Tons/Day</u>	<u>Tons/Yr</u> <u>90% Eff</u>	<u>Project Impact</u> <u>Tons/Hour</u>	<u>%</u>	<u>Capital</u> <u>Cost</u> <u>\$000</u>	<u>Implementation</u> <u>Year</u>
Kiln Base	50.0	1200	394,200				
Combustion Chamber Modification	52.9	1269	416,867	2.9	5.8%	\$ 150	1997
ID Fan Horsepower Increase	54.5	1307	429,350	1.6	3.0%	\$ 30	1997
Oxygen Enrichment Liquid Oxygen @ 20 t/d	56.7	1361	447,089	2.3	4.1%	\$ 30	1997
Raw Mix Modification Fly Ash Addition CKD Return	60.1	1442	473,697	3.4	6.0%	\$ 100	1998
Oxygen Enrichment VSA Plant S/U @ 52 t/d Elimination of Liquid	63.6	1527	501,620	3.5	5.9%	\$ 2,500	1999
Steel Slag Injection on Feedshelf @ 30 t/d	64.5	1549	508,847	0.9	1.4%	\$ -	1999
Steel Slag Injection @ Raw Mill @ 75 t/d	67.7	1625	533,813	3.2	4.9%	\$ -	2000
Annulus Boost Fan Kiln Combustion	69.7	1672	549,252	2.0	2.9%	\$ 100	2000
<u>Future Projects</u>	<u>72.3</u>	<u>1735</u>	<u>569,948</u>	<u>2.6</u>	<u>3.8%</u>	<u>\$ 500</u>	<u>2001</u>
Total Project Impact	22.3	535	175,748	22.3	44.6%	\$ 3,410	
Capitla Cost per Incremental Ton						\$ 19.40	5 Years